

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

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Present: Sh. Lokender Singh Raghav, Special Public Prosecutor for the complainant-SFIO.

None for accused Nos. 1 to 70 companies

None for accused Nos. 71 to 78 companies

Accused No.79 company, represented through accused No.115 Vivek Hari Vyasi who is on interim bail.

Accused Nos. 80 company, represented through accused Naveen Kumar (No. 139).

Accused Nos. 81 and 82 companies, represented through accused Surender Singh (No. 140) who is on interim bail

None for accused No.83

Sh. Somender, AR on behalf of accused No. 84

& 85 company

Accused Nos. 86, 87 and 88 companies, represented through accused Ravi Tak (No. 166) **(sought exemption today)**

None for accused No. 89 company

Accused Nos. 90 to 93 companies, represented through accused No.115 Vivek Hari Vyasi **who is on interim bail**

Accused Nos. 94 to 97 companies, represented through Shri Rahul, **AR, in person**

Accused No. 98 company, represented through Shri Naresh Kumar, **AR, in person**

Accused Nos. 99 and 100 companies, represented through accused Raj Kumar Modi (No. 176) who is **on interim bail**

None for accused No.101, 107

Exemption on behalf of AR of Company No.103

Accused No. 102 company, represented through Shri Deepak, AR, in person

Accused No. 104 company, represented through Shri Vicky, AR , in person

Accused No. 105 company represented through Shri Anoop, AR , in person

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Accused No. **106** company represented through Shri Kashi Nath Jha, AR, in person (**exemption sought today**)

Accused No. 108 company represented through AR Jishan (**exemption for today**) through Ranjan Kumar, Advocate

Accused **110**, represented through AR (**sought exemption today**), represented by Sh Ranjak Kumar, Advocate

Accused No. **109, 111, 112 companies**, represented through ARs, in person

Accused No. 113/Mukesh Modi, in custody (not produced before Court by the concerned jail authority)

Accused No.114 Rahul Virendra Modi in custody, (not produced by the concerned jail authority).

Accused No.115 Vivek Harivyasi **on interim bail**, represented by Sh Vivek Tanwar, Advocate

Accused No.117 Priyanka Modi **in person**, represented by Sh Manl Mittra, Advocate

Accused Vinay Kumpawat (No. 119) already declared proclaimed person vod 27.07.2022

Accused No. 120/Vibhav Lodha **is on bail in this case**, but in custody in other case (**not produced before the Court**)

Proceedings qua accused No.122 Virender Modi stood abated vide order dated 13.11.2024

Accused No. **123/Rohit Modi and No.126/Bharat Modi**, who are **on bail in this case** but in custody in other case, (**not produced before the Court by concerned jail authority**)

Accused No.124 Neha Ghelawat (**sought exemption today**)

Accused No. **125/Rajeshwar Singh, who is on bail in this case but in custody in other case, not produced before the Court by concerned jail authority at Jodhpur**

Sh J.H.Khan, Advocate for accused Jainam Rathod (No.130) in person.

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Accused No. **131**/Ishwar Singh Sindal, **who is on bail in this case but in custody in other case (not produced before the Court)**

Accused No.132 Meenakshi Modi on bail (sought exemption today)

Accused No.**134**/Vivek Purohit, **who is on bail in this case but in custody in other case (not produced before the Court)**

Accused No. No.135/ Siddharth Chauhan already declared **proclaimed person/offender** vide order dated 22.07.2025

Accused Akshat Singh (No. **136**) **on bail in person**, represented by Shri Amol Gupta, Advocate

Accused Shinder Pal Singh (No. **137**) already **declared proclaimed person** vod 03.05.2024

Accused Naveen Kumar (No.139) **on bail**, represented by Sh Ishaan Mukherjee and Sh Vinayak Gupta, Advocates

Accused Surender Singh (No. **140**) **on interim bail, in person**

Accused No. **142**/Bharat Das Vaishnav, **who is on bail in this case but in custody in other case (not produced before the Court by concerned jail authority)**

Accused No.**143**/Sudhir Punia is **on bail** (exemption today),

Accused Joydeep Das Gupta (No.**144**) and Lovekush Sharma (No.145), **on bail**, but **granted personal exemption(s) till further orders vide order dated 22.11.2019**, represented through Shri Vishal Gupta, Advocate.

Accused Leena Harivyasi (No. **146**) **on bail, exempted till further orders vide order dated 03.05.2024**

Accused Vimal Sanwarmal Sharma(No.147), **on bail**, in person.

Accused Avanish Kumar Tyagi (No.148) **on bail**, but **granted personal exemption till further orders vide order dated 22.11.2019**, represented through Shri Vishal Gupta, Advocate.

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Accused Vijay Shukla (No. 149), **on interim bail**, in person

Accused Poonam Madan(No. 151) on bail, **but granted personal exemption** till further orders vide order dated 22.11.2019, represented through Shri Vishal Gupta, Advocate.

Accused Bharat Kumar Mardia (No. 154) **on bail, exempted permanently**, represented by Sh. Peeyush Jain, Advocate.

Proceedings qua accused Mahendra Kumar Tak (155) stood abated vide order dated 25.03.2022.

Accused Praveen Maheshwari (No.156) and Rajeev Maheshwari (No.157) on bail, **but exempted from personal appearance till further order(s) vide order 31.01.2020**, represented through Shri Piyush Jain, Advocate

Accused Megha Chauhan No.(No. 163 **sought exemption today**) accused Indu Tak (No. 164 **sought exemption today**), accused Ravi Tak (No. 166 **sought exemption today**) on bail, represented by Sh Neeraj Dev Gaur, Advocate.

Accused Rajeev Verma (No.167), Sushil Maloo (No.168) and Rajendra Singh Bhandari (No.169) on bail, **but granted permanent exemption** vide order(s) dated 04.09.2019.

Accused Sudhir Mehta(No170) **on bail**, represented by Sh Neeraj Dev Gaur, Advocate.

Accused No.171 Raj Kumar Bohra **in person today**, however, **permanently exempted** till further orders.

Accused No.173 Peeyush Aggarwal on bail (sought exemption today), represented by Sh Prashant Yadav, Advocate

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Accused Paramvir Singh Sangwan(No.174) **on bail**, but **granted personal exemption till further order vide order dated 19.02.2021**, represented by Shri Dinesh Kumar, Advocate.

Proceedings qua accused Vijay Jindal (175) stood abated vide order dated 25.03.2022.

Accused Raj Kumar Modi (No. 176), **on interim bail**, in person.

Accused No.177/Rajiv Kumar Rana **in custody**, produced by the concerned jail authority

Accused Mahesh Dutt Sharma(No.178), **on bail**, in person.

Accused Ichchhita Dungarwal (No.180) and Neha Kataria (No.181) **permanently exempted** till further orders vide 22.11.2019, represented by Sh Nitin Desodya, Advocate

Accused Mahesh Kumar Tak (No. 187) (**sought exemption today**), on bail, represented by Sh Neeraj Dev Gaur, Advocate.

Case received by way of transfer. It be checked and registered.

2. **Accused Mukesh Modi** is not produced by Jail Superintendent, District Jail, Jodhpur.

2(i). The Ld. Predecessor Court, on the last date of hearing, has sought report from worthy Home Secretary, Government of Rajasthan, who may seek report from the concerned authority and then submit a report to this Court qua lapses and delinquent behavior on the part of concerned Superintendent and thus, the concerned authority is directed to submit a report on or before the adjourned date i.e. 06.11.2025.

2(ii). A report along-with Court orders from Superintendent, Central Jail, Jodhpur (Rajasthan) vide No.5589-91 dated 31.10.2025 has been received, pursuant to directions issued on the last date of hearing. Accused No.113 Mukesh Modi who is in custody in this case and was confined in Jodhpur jail (Rajasthan) has not been produced before this Court. The report relied upon Annexure 7, List of pending cases, wherein at serial No.52, the

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present complaint is found mentioned. It has been informed that said accused had been released on interim bail till 15.08.2025 by the Hon'ble High Court of Rajasthan at Jodhpur vide Order dated 07.08.2025 passed in SB Criminal Writ Petition No.2334/2025, however Ld. Senior Prosecutor for the SFIO informed the Court that regular bail application of the accused is stated to be pending adjudication before the Hon'ble High Court of Punjab and Haryana.

2(iii) It is very strange that when regular bail of accused Mukesh Modi is pending before the Hon'ble High Court of Punjab & Haryana vide CRM-M-26815-2024 and pending for 07.11.2025 then how the accused Mukesh Modi is released by jail authorities without verifying the bail status of accused in the present complaint case, also when, it was in their knowledge that he is confined in present complaint.

2(iv) The Hon'ble High Court of Rajasthan vide Order dated 07.08.2025 has granted interim in S.B.Writ Petition No.2334/2025 wherein while granting interim bail on medical ground, the Hon'ble High Court has specifically made it clear that the instant order shall be applicable qua all the FIRs, the recital of which has been given in the petition.

2(v). However, no copy of petition is attached with report in support of explanation whether present complaint is mentioned or not, rather a list Annexure 7 is attached. Moreover, if accused Mukesh Modi has been released on interim bail i.e. not in custody today then he did not bother to appear in the Court in person to show his bona fide and even he did not move any exemption for today. This is matter of serious concern about the conduct of accused and jail authorities, which requires to be brought into the notice of the Hon'ble High Court of Punjab & Haryana where regular bail application is pending.

2(vi). **A separate report be sent to the Hon'ble High Court along-with copy of this Order for kind information and perusal through proper channel. Copy of order be also sent to the Superintendent, Central Jail, Jodhpur.**

3. PRODUCTION WARRANTS:

3(i) Accused No. **114**/Rahul Virendra Modi, accused No. **134**/Vivek Purohit and accused No. **120**/Vibhav Lodha, who are on bail in this case, but in custody in other case, not produced by concerned jail authority. Production warrants of the said accused be issued directing concerned jail authority to produce said accused before the Court through VC on the adjourned date if they remains custody in other case.

3(ii). Accused No. **131**/Ishwar Singh Sindal on bail in this case but cusotdy in other case, not produced by concernd jail authority. His production warrants be issued directing Superintendent, concerned jail Jodhpur, Rajasthan to produce the said accused before the Court through VC on the adjourned date.

3(iii). Accused No.**177**/ Rajiv Kumar Rana in custody, produced physically from Bhondsi Jail and he be produced through VC on the adjourned date.

3(iv). Accused No. **123**/Rohit Modi, No.**126**/Bharat Modi, No. **142**/Bharat Das Vaishnav, who are on bail in this case, but custody in other case(s), not produced before the Court through video conferencing by concerned jail authority. Production warrants of the said accused be issued directing concerned jail authority to produce said accused before the Court through VC on the adjourned date if they remains custody in other case.

3(v). Accused No. **125**/Rajeshwar Singh, who is on bail in this case but in custody in other case, produced before the Court through video conferencing. Said accused be produced before the Court on the adjourned date, if he remains in custody in other case.

The timings of producing the accused would be at 02.00 P.M. on the next date of hearing on video-conferencing. Ahlmad isdirected to give note in red-ink on the production warrant for the compliance of order for appearance, if on VC, at remote point.

4. EXEMPTION APPLICATIONS:

4(i). Separate applications seeking exemption from personal appearance(s) filed on behalf of accused No. 143, 163, 164, 166, 173 and 187. The applications are supported by respective affidavit(s). It is stated that accused No.143 could not appear due to ill health (supported by medical document), accused No.163 could not appear due to ill health, accused No.164 could not appear due to high fever, accused no.166 could not appear as he is unwell (supported by medical document), accused No.173 could not appear due to official seminar at Mumbai, accused No.187 could not appear due to poor health and medical reasons. For the reasons mentioned in the applications, the same stand allowed for today only subject to furnishing of medical documents on the next date of hearing by accused No.163, 164 and 187 as well furnishing of details of seminar at Mumbai and invitation and her deputation by the company by accused No.173.

4(ii). Separate applications seeking exemption from personal appearance(s) filed on behalf of Authorized Representative(s) of accused No.103, 106, 108, 110. It is stated that AR of accused No.103 could not appear due to suffering from fever, AR of accused No.104 could not appear due to eye injury, AR of accused No.108 could not appear due to the back pain and AR of accused No.110 could not appear due to ill health. For the reasons mentioned in the applications, the same stand allowed for today only subject to furnishing medical record on the next date of hearing.

4(iii). Accused No.124/Neha Ghemawat and accused No.132/Meenakshi Modi moved separate application(s) seeking exemption from personal appearance. The applications(s) are supported by respective affidavit(s). It is stated in the application that accused No.132/Meenakshi Modi is required for taking care of her husband Mukesh Modi for knee surgery and accused No.124/Neha could not appear due to acute back pain and advice to get surgery of limb on

discectomy, however, the documents attached with application of Neha are of 23.08.2025. Heard. For the reasons mentioned in the application(s), the same stand allowed for today only. Both these accused are directed to furnish medical documents on the next date of hearing qua which they had moved exemption applications.

It is further made clear that no exemption application will be entertained except in extreme exigencies.

5. APPLICATIONS FOR DEFER PROCEEDINGS:

5(i). Accused No.141 did not appear, however, an application seeking exemption from personal appearance has been moved by counsel on the ground that orders passed by this Court on 16.04.2025 and 22.07.2025 and cognizance order have been challenged before the Hon'ble High Court and also revision petition is pending before the Hon'ble High Court. Also prayer has been made in defer the proclamation proceedings. Heard. Admittedly, no stay order either passed by Hon'ble High Court or Hon'ble Supreme Court has been provided by the counsel for the accused. Hence, there is no merit in the application moved by accused No.141 and disposed off accordingly.

Except the abovesaid application, another application has also been filed on behalf of accused No.141 Aditya while referring the order of Hon'ble Supreme Court in Criminal Appeal No.4088 of 2025 passed in case of co-accused Sidharth Chahan, vide which Hon'ble Supreme Court has stayed the order of proclamation till the disposal of CRM-M-45417 of 2017 which directed to dispose of within six weeks. Heard. There is also no merit in the present application as there is no stay for the proceedings qua the accused Aditya Sarda, hence the present application is disposed of accordingly.

5(ii). On the last date of hearing, non bailable warrants were issued against accused No.152 Nazima Khan and accused No.153 Shabbir Khan, which remained unexecuted. Today, an application has been again moved on behalf of these two accused, with a prayer to

postpone further proceedings, including issuance of fresh NBW's against these accused, mainly on the ground that quashing petition bearing CRM-M-32075-2025 has been preferred on behalf of these accused and said petition is listed for hearing on 29.11.2025. On a specific query to learned counsel, who moved aforesaid application, he fairly conceded that no restraint order has so far been passed by Hon'ble High Court till date. Thus, in the absence any restraint order passed in favour of the aforesaid accused, it would be difficult for this Court to distinguish case of these accused from similarly situated co-accused qua whom coercive process has been issued, especially in view of order passed by Hon'ble Supreme Court whereby all such accused were directed to surrender before the Trial Court within a specified period but they have not ensured compliance of direction(s) passed by Hon'ble Supreme Court. Hence, aforesaid application stands disposed of.

5(iii). Three separate applications have been moved on behalf of accused No.162, 165 and 172 regarding information the status of review petition. Heard. The said revision petitions were listed before the Hon'ble Supreme Court on 09.10.2025 but are still pending and there is no stay order by the Hon'ble Supreme Court. Accordingly, the above said applications being meritless are hereby disposed off.

6. OTHER MISCELLANEOUS APPLICATIONS:

6(i). Two separate applications seeking permanent exemptions from personal appearance of accused No.124 Smt. Neha Ghelawat and accused No.132 Smt.Meenakshi Modi, were also pending. Reply, if any, be filed on the adjourned date.

6(ii). No response to the application of applicant/accused Shiv Raj Sharma, seeking grant of pardon in this matter filed by complainant/SFIO. Complainant/SFIO shall file response to the application of applicant/accused Shiv Raj Sharma, seeking grant of

pardon in this matter and necessary response be filed on or before **07.01.2026**.

6(iii). Learned Special Public Prosecutor is also directed to bring on record amended title, thereby reflecting the names of the persons who have been granted pardon, as prosecution witness, as per the order(s) passed by this Court.

6(iv). Reply to the application of accused No.130 Jainam Rathod seeking permanent exemption from personal appearance, not filed by SFIO/complainant. Reply, if any, be filed on the adjourned date. Accused No.130 appeared today and placed on record the order dated 01.10.2025 passed in Criminal Miscellaneous Appal (regular bail) No.6792 of 2025.

6(v). Reply to the application(s) of accused No.124 Neha Ghemawat Modi and accused No.132 Meenakshi, seeking permanent exemption from personal appearance, not filed. Replies, if any, be filed on the adjourned date.

6(vi). An application for renewal of passport of applicant Peeyush Aggarwal was also filed on 16.10.2025 vide IA-14-2025. Reply to the said application be filed on 02.12.2025.

7. NON-BAILABLE WARRANTS:

7(i). Non bailable warrants issued against accused No.116 Nitin Rathore, accused No.118 Jinender Vyas, accused No.121 Paras Bolia, accused No.127 Abhay K.Shah, accused No.128 Manish Chaudhary, accused No.129 Deepak Shrimali, accused No.133 Prakash Chand Purohit, accused No.138 Gurbir Singh Sandhu, accused No.141 Aditya Sarda, accused No.152 Nazima Khan, accused No.153 Shabbir Khan, accused No.162 Naveen Chaudhary, accused No.165 Shyam Bihari Gupta, accused No.172 Saurabh Tak received back unexecuted by large on the grounds that house locked, not seen, not residing, etc. Let presence of all these accused be again secured by way of non-bailable warrants for **7.01.2026**.

8. An application for Change of AR has also been moved on behalf of accused No.112. Copy supplied to Ld. Special Public Prosecutor. Reply, if any, be filed on **07.01.2026**.

9. Arguments on two separate applications, seeking permanent exemption from appearance(s) before the court, moved on behalf of accused no. 117/Priyanka Modi and accused No.133 Prakash Chandra Purohit, not advanced. Arguments on these applications shall be heard on the adjourned date.

It is made clear to all concerned that the case will be taken up at 12:30 P.M. on the date of hearing of the case. No accused will make request to the Court to mark his presence or ask to entertain any of his application before 12:30 P.M nor any contact either telephonically or physically to the Court staff will be made by any accused, otherwise serious note will be taken and action will taken, as per law.

Date of order: 06.11.2025

Nitin Chawla SG-II

(Dr. Gagan Geet Kaur)
ASJ, Gurugram
UID No.HR0482